

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RALPH HERRERA,

SUMMONS

Plaintiff,

Index No.

-against-

Plaintiff Selects Bronx County as the
Venue for Trial Based on Locus of Injury

CITY OF NEW YORK, BRIAN LEE and JOSE GOMEZ,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 11, 2023

SIM & DEPAOLA LLP

Attorneys-at-Law

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Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

TO: CITY OF NEW YORK

Via Corporation Counsel of The City of New York
100 Church Street
New York, New York 10007

P.O. BRIAN LEE (Shield No. 7949)

Via Transit District 3
145th Street and St. Nicholas Avenue Subway Station
New York, New York 10003

Sgt. JOSE GOMEZ (Shield No. 2126)

Via Internal Affairs Bureau
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RALPH HERRERA,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, BRIAN LEE and JOSE GOMEZ,

Defendants.
-----X

The Plaintiff, **Mr. Ralph Herrera**, by and through the undersigned attorneys, **SIM & DEPAOLA LLP**, for his complaint against Defendants, **CITY OF NEW YORK, BRIAN LEE** And **JOSE GOMEZ**, alleges and states, as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, for violations of his rights under the First, Fourth, Fifth, Sixth or Fourteenth Amendments, in addition to the laws of the City and State of New York.
2. The following claims arise from transactions or occurrences alleged to have transpired on, or about, August 14, 2019, at approximately 4:00 p.m., inside 1240 Morrison Avenue, The Bronx, New York, in which defendants, acting under color of state law, caused Plaintiff to be unlawfully stopped, questioned, searched, detained and arrested without reasonable suspicion or probable cause.
3. Defendants then caused criminal proceedings to be initiated and maintained in the absence of probable cause to believe Plaintiff guilty or that such proceedings would succeed and engaged in the suppression of exculpatory facts or information and fabrication of evidence forwarded to prosecutors that was likely to influence a jury's decision.

4. Plaintiff was therefore maliciously prosecuted and denied rights to Fair Trial and Due Process of Law, until the criminal proceedings were terminated in favor of Plaintiff on March 30, 2022, when all adverse charges were summarily and unconditionally dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

5. As a result, Plaintiff was caused to sustain injuries, including the loss of liberty over the course of seven (7) days, substantial physical pain and suffering, and emotional and psychological distress continuing and believed to be permanent.

6. At all times, defendants were acting under color of state law, to wit, under color of laws, statutes, ordinances, regulations, policies, customs or usages of the City or State of New York.

7. Plaintiff timely served the City of New York, Office of the Comptroller, with a notice of claim, pursuant to GML § 50-E.

8. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

9. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, plus all accrued interest, together with such other or further relief, as the Court may deem just and proper.

PARTIES

10. Plaintiff, Mr. Ralph Herrera ("Mr. Herrera"), is a Black, African American, Latino or Hispanic male who resides in The Bronx, New York.

11. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

12. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

13. At all times here relevant herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

14. At all times, Defendants, BRIAN LEE (“LEE”) and JOSE GOMEZ (“GOMEZ”), were police officers, detectives, sergeants or other supervisory officers employed by the NYPD and were therefore acting as agents of Defendant City. Defendants LEE and GOMEZ are being sued in their individual and official capacities.

15. At all times, defendants were acting under color of state law, to wit, under color of the laws, statutes, ordinances, regulations, policies, customs or usages of the City or State of New York.

FACTUAL CHARGES

16. On, or about, August 14, 2019, at approximately 4:00 p.m., inside 1240 Morrison Avenue, The Bronx, New York, defendants, including LEE and GOMEZ, wrongly stopped, searched, seized, detained and arrested Mr. Herrera who was in obedience of all local, state and federal laws.

17. Defendants, including LEE and GOMEZ, illegally approached Plaintiff with outstretched limbs immediately before forcefully grabbing and holding Plaintiff's arms and body.

18. Defendants, including LEE and GOMEZ, then illegally seized, detained and questioned Plaintiff regarding criminal activity and illicit items without probable cause, reasonable suspicion, or other legal justification therefor.

19. Defendants, including LEE and GOMEZ, unlawfully searched Plaintiff's person and possessions, despite no indicia of criminal or unlawful activity.

20. Defendants, including LEE and GOMEZ, violently contorted Plaintiff's arms behind his back prior to rear handcuffing Plaintiff in an excessively tight and painful manner.

21. Plaintiff made numerous complaints that either ignored or denied by defendants, including LEE and GOMEZ, regarding the substantial physical pain and suffering caused by the excessively tight handcuffs.

22. As a result, Plaintiff sustained lacerations, abrasions, hematomas, the loss of sensation and a diminished range of movement to his wrists, hands and arms.

23. Defendants, including LEE and GOMEZ, ignored or denied the pleas to loosen the handcuffs which physical injuries.

24. Defendants, including LEE and GOMEZ, caused Plaintiff to be fingerprinted, photographed and patted down or strip-searched with an attendant cavity inspection prior to confining Plaintiff to a filthy, dark, damp, decrepit and rat-infested cell.

25. Defendants, including LEE and GOMEZ, engaged in the fabrication of incriminatory evidence forwarded to prosecutors, which was likely to influence a jury's decision, namely the fabrication of their own observations or other indicia that Plaintiff was observed to be

in possession of loaded firearm and guilty of Criminal Possession of a Weapon in the Second Degree, under New York Penal Law § 265.03 (3).

26. Defendants, including LEE and GOMEZ, lacked probable cause or reasonable suspicion, because did not engage in any criminal acts or conduct that could be reasonably construed as such, including the Criminal Possession of a Weapon in the Second Degree or other related charges.

27. Defendants, including LEE and GOMEZ, knowingly, maliciously, and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which defendants falsely attributed to Plaintiff before forwarding to prosecutors.

28. Defendants, including LEE and GOMEZ, engaged in fraud, the suppression of evidence, perjury, and a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

29. Defendants, including LEE and GOMEZ, arrested, detained and prosecuted Plaintiff without probable cause, as Plaintiff was not observed to engage in criminal or unlawful conduct by defendants or civilian witnesses and defendants lacked any evidence or information to the contrary.

30. Defendants, including LEE and GOMEZ, caused a criminal prosecution to be initiated and thereafter maintained in the absence of probable cause to believe such prosecution would succeed or that Plaintiff was guilty, from the time of arraignment, until the proceedings were irrefutably terminated in favor of Plaintiff on March 30, 2022, when all adverse charges were unconditionally and summarily dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

31. As a result, Plaintiff was caused to wrongfully detained by defendants, including LEE and GOMEZ, over the course of seven (7) days.

32. At all times, defendants, including LEE and GOMEZ, were involved in the decision to stop, seize or arrest Plaintiff without reasonable suspicion or probable cause, or failed to intervene upon observing others doing so without reasonable suspicion or probable cause.

33. At all times relevant hereto, defendants, including LEE and GOMEZ, subjected Plaintiff to excessive force, or failed to intervene upon observing others applying excessive force.

34. Defendants, including LEE and GOMEZ, arrested and caused criminal proceedings to be initiated against Plaintiff to obtain personal or employment benefits, such as overtime compensation, other employment benefits and increased favor from superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of nonexistent observations, evidence and information.

35. Defendants, including LEE and GOMEZ, arrested, applied excessive force or caused Plaintiff to be criminally prosecuted without probable in retaliation for Plaintiff engaging in protected speech or activities, including expressions of disagreement or general displeasure regarding the misconduct of defendants and polite inquiries as to the impropriety thereof.

36. Defendants, including LEE and GOMEZ, unlawfully targeted Plaintiff for police intervention in the absence of probable cause or reasonable suspicion regarding criminal or unlawful activity because Plaintiff is Black, African American, Latino or Hispanic.

37. Defendants, including LEE and GOMEZ, conspired to arrest or prosecute Plaintiff in the absence of probable cause by verbally conferring with each other in person to fabricate

the nonexistent evidence or observations and the manner and means to forward such to prosecutors.

38. Defendants, including LEE and GOMEZ, are part of a larger pattern and practice of similar misconduct, so widespread, pervasive and consistent as to be an official policy or custom maintained, condoned, ratified or tacitly approved by the NYPD or Defendant City.

39. Defendants, including LEE and GOMEZ, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of Defendant City, the NYPD or their policymakers or supervisors.

40. *The New York Times* and numerous other reputable journalistic enterprises have reported on the widespread corruption plaguing the NYPD and Defendant City, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Further, the obstinate refusal by NYPD to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds compounded by awarding offending officers, including those inculpated via incontrovertible video evidence, with promotions, increased overtime, official accommodations or other employment benefits.

41. The Constitutionally repugnant behavior displayed by police officers is caused by policies, rules and procedures employed or endorsed by the NYPD, namely the incredibly flawed and illegal use of weekly or monthly arrest quotas, which systemically persist, despite the illegality and public condemnation expressed by policymakers. The NYPD, however, was

not content with general arrest quotas, as quotas predicated on race, color or ethnicity are applied by assigning numerical values to arrests based on the race, color or ethnicity of the individual arrested. Unsurprisingly, the highest values are reserved for serious felony arrests of minorities. Such misconduct has been corroborated by numerous journalists and media organizations forming the basis for several high-profile lawsuits against the NYPD or Defendant City, including several filed by NYPD officers.

42. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved.” The article details retaliatory actions by the NYPD against a police officer identified as P.O. Terrence Dickerson, because he refused to comply with obligatory racially based arrest quotas and accept responsibility for a controversial and publicized use of excessive force incident to arrest.

43. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

44. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from another NYPD officer, P.O. Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

45. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely

on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

46. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

47. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Detective Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Detective Franco's lies resulted in the innocent individuals each being sentenced to prison terms exceeding 1-year.

48. Additional instances of NYPD misconduct have been identified in the following articles: (i) "Testilying' by Police: A Stubborn Problem," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

49. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging police officer bias, although not even one has been substantiated by the NYPD. The lack of a single substantiated complaint is highly indicative of deliberately poor or nonexistent investigatory protocols. The report further impugned the purported commitment by the NYPD to combat the prejudices and the biases exhibited by many of its officers.

50. Upon information and belief, the NYPD, Defendant City or their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices of NYPD officers that resulted in the unjustified arrest and prosecution of Plaintiff without probable cause.

51. Upon information and belief, the NYPD, Defendant City and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or appropriate force to be used.

52. Defendants, including LEE and GOMEZ, engaged in such Constitutionally repugnant behavior that prior violations of civil rights and the express or tacit approval of such misconduct by policymakers or supervisors of Defendant City or the NYPD may be inferred.

53. Upon information and belief, further details and facts concerning NYPD policies, customs, patterns or practices resulting in civil rights violations will be revealed pursuant to court mandated discovery procedures, as such is known exclusively to defendants.

54. Upon information and belief, the personnel files, records and disciplinary histories of defendants, including LEE and GOMEZ, will establish that Defendant City knew or should have known that defendants were unfit for employment as police officers, or for employment in general, and defendants were likely to commit future similar civil rights violations.

55. Upon information and belief, said personnel files, records and disciplinary histories will show many prior violations of civil rights past constitutional violations and a high probability of recurrence likely to result from the hiring or retention of defendants as police officers, especially without preventive or corrective measures to discourage such behavior.

56. Upon information and belief, the individually named defendants, including LEE and GOMEZ, have not been subject to any disciplinary or corrective action by the NYPD or Defendant City, despite the existence of prior allegations of misconduct, including multiple federal or state lawsuits.

57. As a direct or proximate result of said acts by defendants, including the City, LEE and GOMEZ, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings or potential earnings, physical pain and suffering, as well as severe and

permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience or anxiety.

FIRST CAUSE OF ACTION
Free Speech Retaliation Claim Under
New York State Law

58. The above paragraphs are hereby incorporated by reference as though fully set forth.

59. Plaintiff engaged in protected speech or activities, pursuant to Article I § 8 of the Constitution of the State of New York.

60. Defendants were motivated or substantially caused to act in violation of Plaintiff's civil rights by the protected speech or activities of Plaintiff.

61. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of liberty and initiation of criminal charges.

62. Defendants physically or procedurally prevented Plaintiff's further pursuit thereof or chilled Plaintiff's desire to participate or engage in such protected speech or activities.

63. Accordingly, defendants violated Plaintiff's rights under Article I § 8 of the Constitution of the State of New York.

64. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

65. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

SECOND CAUSE OF ACTION
First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

66. The above paragraphs are hereby incorporated by reference as though fully set forth.

67. Plaintiff engaged in speech and activities protected by the First Amendment.

68. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

69. Defendants' retaliatory actions resulted in Plaintiff's loss of liberty and the compulsory defense of a criminal prosecution initiated and maintained in the absence of probable cause.

70. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or chilling the desire to engage in such.

71. Accordingly, Plaintiff's right to engage in protected speech and activities, under the First Amendment, was violated by defendants.

72. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRD CAUSE OF ACTION

Unreasonable Search and Seizure Under New York State Law

73. The above paragraphs are hereby incorporated by reference as though fully set forth.

74. Defendants subjected Plaintiff and his property to unreasonable searches or seizures without a valid warrant and in the absence of reasonable suspicion or probable cause.

75. Plaintiff was conscious and fully aware of the unreasonable searches and seizures.

76. Plaintiff did not consent to the unreasonable searches and seizures.

77. The unreasonable searches and seizures were not otherwise privileged.

78. Accordingly, defendants deprived Plaintiff of rights under Article I § 12 of the Constitution of the State of New York and Article II § 8 of the New York Civil Rights Law.

79. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, pursuant to the doctrine of *respondeat superior*.

80. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTH CAUSE OF ACTION

Unreasonable Search and Seizure Under 42 U.S.C. § 1983 *Against* Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth.

82. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

83. Plaintiff was conscious and fully aware of the unreasonable searches and seizures.

84. Plaintiff did not consent to the unreasonable searches or seizures .

85. The unreasonable searches and seizures were not otherwise privileged.

86. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

87. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under New York State Law

88. The above paragraphs are hereby incorporated by reference as though fully set forth.

89. Defendants caused Plaintiff to be arrested, imprisoned, confined and deprived of liberty without a valid warrant or probable cause therefor.

90. Plaintiff was conscious of the confinement.

91. Plaintiff did not consent to the confinement.

92. The arrest and imprisonment of Plaintiff were not otherwise privileged.

93. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

94. As a direct or proximate result, Plaintiff sustained damages.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under 42 U.S.C. § 1983 *Against* Individual Defendants

95. The above paragraphs are here incorporated by reference as though fully set forth.

96. Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff in the absence of probable cause or a valid, judicially authorized warrant.

97. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant or the consent of Plaintiff and also without reasonable suspicion or probable cause to believe a crime or unlawful offense was committed, being committed or about to be committed.

98. At all times, defendants forcibly apprehended, arrested and imprisoned Plaintiff.

99. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth.

101. At all relevant times, defendants caused Plaintiff to fear for his physical wellbeing and safety and placed him in apprehension of immediate harmful or offensive touching.

102. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without consent or justification.

103. Due to the said acts of defendants, Plaintiff suffered damages.

104. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a direct or proximate result of this breach, Plaintiff sustained damages.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

106. The above paragraphs are here incorporated by reference as though fully set forth.

107. Defendants violated Plaintiff's rights under the Fourth or Fourteenth Amendments, because they used unreasonable force without consent.

108. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered Plaintiff without consent.

109. As a direct or proximate result of this breach, Plaintiff sustained damages.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.

111. Defendants initiated the prosecution against Plaintiff.

112. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

113. Defendants acted with malice which may be inferred in the absence of probable cause.

114. The prosecution terminated favorably when all charges were dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

115. Due to said acts of defendants, Plaintiff suffered damages.

116. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.

119. Defendants initiated the prosecution against Plaintiff.

120. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

121. Defendants acted with malice which may be inferred in the absence of probable cause.

122. The prosecution terminated favorably when all charges were dismissed and sealed, upon consideration of the merits thereof, under CPL §§ 160.50 or 160.60.

123. Accordingly, defendants violated Plaintiff's Fourth or Fourteenth Amendment rights.

124. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

125. The above paragraphs are here incorporated by reference as though fully set forth.

126. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

127. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

128. Defendants intended to inflict substantial harm upon Plaintiff.

129. Defendants acted in furtherance of a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

130. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

132. The above paragraphs are here incorporated by reference as though fully set forth.

133. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

134. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

135. Defendants intended to inflict substantial harm upon Plaintiff.

136. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

137. Defendants therefore acted in violation of Plaintiff's rights under the Fourth or Fourteenth Amendments to the Constitution of the United States.

138. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial and Due Process of Law Under New York State Law

139. The above paragraphs are here incorporated by reference as though fully set forth herein.

140. Defendants fabricated incriminatory evidence likely to influence a jury's decision.

141. Defendants forwarded fabricated evidence or false information to prosecutors.

142. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

143. Accordingly, defendants violated Plaintiff's rights, under Article I §§ 1, 2, 6 and 9 of the New York Constitution, and Article II §§ 10 and 12 of the New York Civil Rights Law.

144. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

145. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial and Due Process of Law Under 42 U.S.C. § 1983 *Against* Individual Defendants

146. The above paragraphs are here incorporated by reference as though fully set forth.

147. Defendants fabricated evidence against Plaintiff likely to influence jury.

148. Defendants forwarded said false information to prosecutors.

149. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

150. Accordingly, defendants violated Plaintiff's right under the Fifth, Sixth or Fourteenth Amendments.

151. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under New York City Law

152. The above paragraphs are here incorporated by reference as though fully set forth.

153. Defendants committed acts or a series of acts that constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless if such acts resulted in criminal charges, prosecution or conviction.

154. Accordingly, defendants committed a crime of violence against Plaintiff in violation § 10-403 of the Administrative Code of the City of New York.

155. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling Under New York City Law

157. The above paragraphs are here incorporated by reference as though fully set forth.

158. Plaintiff is a member of a racial minority and protected class.

159. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff,

rather than Plaintiff's behavior or other information or circumstances that indicative of unlawful activity.

160. Accordingly, defendants violated Plaintiff's rights under § 14-151 of the Administrative Code of the City of New York.

161. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

162. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of Law Under
New York State Law

163. The above paragraphs are here incorporated by reference as though fully set forth herein.

164. Plaintiff is a member of a racial minority and protected class.

165. Defendants discriminated against Plaintiff on the basis of race, skin color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

166. Defendants selectively treated Plaintiff relative to others similarly situated.

167. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

168. Defendants applied facially neutral laws, statutes, rules, regulations or ordinances against Plaintiff in a discriminatory manner.

169. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

170. Defendants did not possess a rational basis, excuse or justification for applying any laws, statutes, rules, regulations or ordinances against Plaintiff.

171. Accordingly, defendants violated Plaintiff's rights, pursuant to Article I § 11 of the Constitution of the State of New York, Article VII § 79-N of the New York Civil Rights Law and § 296, ¶ 13, of the New York Human Rights Law.

172. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

173. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of Law Under
42 U.S.C. §§ 1981 and 1983 *Against* Individual Defendants

174. The above paragraphs are here incorporated by reference as though fully set forth.

175. Plaintiff is a member of a racial minority and protected class.

176. Defendants discriminated against Plaintiff on the basis of race, skin color or ethnicity.

177. Defendants selectively treated Plaintiff relative to others similarly situated.

178. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

179. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

180. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

181. Defendants lacked a rational basis, excuse or justification to apply said laws against Plaintiff.

182. Accordingly, defendants violated Plaintiff's rights, under the Fourteenth Amendment.

183. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 and 1986 *Against* Individual Defendants

184. The above paragraphs are here incorporated by reference as though fully set forth.

185. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a Fair Trial, to not be deprived of liberty or property without Due Process of Law, or Plaintiff's entitlement to the privileges and immunities under the laws and Constitution of the United States.

186. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

187. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges afforded to citizens of the United States.

188. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

189. The defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

190. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth or Fourteenth Amendments to the Constitution of the United States.

191. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

192. The above paragraphs are hereby incorporated by reference, as though fully set forth.

193. Those defendants that were present but did not actively participate in the unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

194. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

195. As a direct or proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

196. The above paragraphs are here incorporated by reference as though fully set forth.

197. Those defendants that were present but did not actively participate in the unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

198. Accordingly, defendants violated the Fourth and Fourteenth Amendments.

199. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

200. The above paragraphs are hereby incorporated by reference, as though fully set forth.

201. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

202. Defendant City breached those duties of care.

203. Defendant City placed defendants in positions to inflict foreseeable harm.

204. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.

205. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented said injuries to Plaintiff.

206. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-THIRD CAUSE OF ACTION
Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

207. The above paragraphs are here incorporated by reference as though fully set forth.

208. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

209. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

210. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to employee officers.

211. The individual defendants engaged in such egregious and flagrant violations of civil rights that the need for enhanced training or supervision is obvious.

212. Defendant City has failed or refused apply corrective or disciplinary measures to prevent the recurrence of civil rights violations.

213. Defendant City therefore maintained, espoused, condoned, encouraged, ratified or tacitly approved of policies, customs or patterns and practices in violation of the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

214. As a direct or proximate result, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- t) On the Twentieth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- v) On the Twenty-Second Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

x) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action,

y) Awarding Plaintiff attorney's fees and costs, under 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action, plus all accrued interest.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
April 11, 2023

SIM & DEPAOLA LLP

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42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of **SIM & DEPAOLA LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 11, 2023

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.